

COMMITTEE ON GOVERNMENT
SENATE AMENDMENTS TO S.C.R. 1032
(Reference to printed resolution)

1 Strike everything after the resolving clause and insert:

2 "1. Under the power of the referendum, as vested in the
3 Legislature, the following measure, relating to school district budgets,
4 is enacted to become valid as a law if approved by the voters and on
5 proclamation of the Governor:

6 AN ACT

7 AMENDING TITLE 15, CHAPTER 9, ARTICLE 1, ARIZONA REVISED
8 STATUTES, BY ADDING SECTION 15-917; RELATING TO SCHOOL
9 DISTRICT BUDGETS.

10 Be it enacted by the Legislature of the State of Arizona:

11 Section 1. Title 15, chapter 9, article 1, Arizona
12 Revised Statutes, is amended by adding section 15-917, to
13 read:

14 15-917. Operational spending; teacher pay; enforcement;
15 waivers; definitions

16 A. EACH SCHOOL DISTRICT IN THIS STATE SHALL SPEND AT
17 LEAST SIXTY PERCENT OF THE SCHOOL DISTRICT'S OPERATIONAL
18 SPENDING AS DEFINED BY THE OFFICE OF THE AUDITOR GENERAL ON
19 TEACHER PAY. BEGINNING IN FISCAL YEAR 2027-2028, ANY SCHOOL
20 DISTRICT THAT SPENDS LESS THAN SIXTY PERCENT OF THE SCHOOL
21 DISTRICT'S OPERATIONAL SPENDING ON TEACHER PAY SHALL INCREASE
22 THE PORTION OF THE SCHOOL DISTRICT'S OPERATIONAL SPENDING THAT
23 IS SPENT ON TEACHER PAY EACH YEAR BY AT LEAST ONE-HALF OF ONE
24 PERCENT PER YEAR UNTIL THE SCHOOL DISTRICT IS IN COMPLIANCE,
25 SUBJECT TO THE FOLLOWING:

26 1. IF A SCHOOL DISTRICT INCREASES THE PORTION OF THE
27 SCHOOL DISTRICT'S OPERATIONAL SPENDING ON TEACHER PAY BY MORE
28 THAN ONE-HALF OF ONE PERCENT PER YEAR, THE SCHOOL DISTRICT MAY
29 COUNT THE PORTION OF THE INCREASE THAT EXCEEDS ONE-HALF OF ONE
30 PERCENT TOWARD ANY INCREASE THAT IS REQUIRED IN A SUBSEQUENT
31 YEAR.

32 2. IF A SCHOOL DISTRICT REDUCES THE PORTION OF THE
33 SCHOOL DISTRICT'S OPERATIONAL SPENDING ON TEACHER PAY, BOTH OF
34 THE FOLLOWING APPLY:

1 (a) THE AUDITOR GENERAL MAY NOT CONSIDER THE REDUCTION
2 WHEN CALCULATING THE AMOUNT OF THE ANNUAL INCREASE THAT IS
3 REQUIRED BY THIS SUBSECTION FOR THE SCHOOL DISTRICT.

4 (b) THE SCHOOL DISTRICT MAY COUNT ONLY THE PORTION OF
5 AN INCREASE IN OPERATIONAL SPENDING ON TEACHER PAY FOR A
6 SUBSEQUENT YEAR THAT RESULTS IN AN INCREASE ABOVE THE PORTION
7 OF OPERATIONAL SPENDING BEFORE THE REDUCTION.

8 B. IF THE AUDITOR GENERAL DETERMINES THAT A SCHOOL
9 DISTRICT IS NOT COMPLYING WITH THE REQUIREMENTS PRESCRIBED BY
10 SUBSECTION A OF THIS SECTION AND IF THE SCHOOL DISTRICT
11 RECEIVES MONIES FROM THE CLASSROOM SITE FUND ESTABLISHED BY
12 SECTION 15-977:

13 1. ANY UNEXPENDED AND UNENCUMBERED MONIES DISTRIBUTED
14 TO THE SCHOOL DISTRICT FROM THE CLASSROOM SITE FUND REVERT TO
15 THE CLASSROOM SITE FUND.

16 2. THE SCHOOL DISTRICT IS INELIGIBLE TO RECEIVE MONIES
17 FROM THE CLASSROOM SITE FUND UNTIL THE OFFICE OF THE AUDITOR
18 GENERAL DETERMINES THAT THE SCHOOL DISTRICT IS IN COMPLIANCE.

19 3. THE STAFF OF THE JOINT LEGISLATIVE BUDGET COMMITTEE
20 SHALL INCLUDE MONIES THAT REVERT PURSUANT TO THIS SUBSECTION
21 IN THE CARRYFORWARD AND ADJUST THE PER PUPIL CALCULATIONS
22 PURSUANT TO SECTION 15-977, SUBSECTION G, PARAGRAPH 1 TO
23 EXCLUDE THE WEIGHTED STUDENT COUNT FOR ANY SCHOOL DISTRICT
24 THAT IS INELIGIBLE PURSUANT TO THIS SUBSECTION.

25 C. THE SUPERINTENDENT OF PUBLIC INSTRUCTION MAY WAIVE
26 THE REQUIREMENTS PRESCRIBED BY SUBSECTION B OF THIS SECTION
27 FOR A SCHOOL DISTRICT SUBJECT TO THE FOLLOWING:

28 1. THE DURATION OF A WAIVER PURSUANT TO THIS SUBSECTION
29 MAY NOT EXCEED ONE YEAR.

30 2. THE SUPERINTENDENT OF PUBLIC INSTRUCTION MAY NOT
31 ISSUE A WAIVER FOR A SCHOOL DISTRICT FOR MORE THAN TWO
32 CONSECUTIVE YEARS.

33 D. THIS SECTION DOES NOT REQUIRE THIS STATE OR AN
34 OFFICER OR AGENCY OF THIS STATE TO MAINTAIN THE CLASSROOM SITE
35 FUND ESTABLISHED BY SECTION 15-977 OR ALLOCATE MONIES FOR A
36 CLASSROOM SITE FUND EXCEPT AS OTHERWISE PROVIDED BY THE LAWS
37 OF THIS STATE.

38 E. FOR THE PURPOSES OF THIS SECTION:

39 1. "TEACHER" MEANS ANY INDIVIDUAL WHO IS CLASSIFIED AS
40 A TEACHER IN THE UNIFORM SYSTEM OF FINANCIAL RECORDS.

41 2. "TEACHER PAY" INCLUDES THE BASE SALARY, PERFORMANCE
42 PAY, OTHER COMPENSATION AND ALL EMPLOYEE BENEFITS THAT A
43 TEACHER RECEIVES AND THAT ARE PAID FOR BY THE SCHOOL DISTRICT.

Senate Amendments to S.C.R. 1032

- 1 2. The Secretary of State shall submit this proposition to the
- 2 voters at the next general election as provided by article IV, part 1,
- 3 section 1, Constitution of Arizona."
- 4 Amend title to conform

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